

Multiparty Mediation in Cyprus in 1963–1965

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Abstract

A consensus of opinion has emerged in mediation literature which places multiparty mediation as the 'key' to successful mediation. In principle, multiparty mediation combines facilitation strategies as practiced by neutral actors, with the more directive and intrusive strategies played by powerful States capable of exerting pressure on local stakeholders reluctant to reach a peace settlement. This article aims to demonstrate that the mediation initiatives conducted in Cyprus in 1963–1965 by the United States of America and the United Nations had an ideal multiparty potential that was not recognised and was, indeed, rebuffed by these actors. In conclusion, this study infers that multiparty mediation might have substantially benefited the peace process had the United States of America united its capacity to leverage all parties to align with the United Nations' willingness to facilitate a settlement locally.

Keywords: conflict, mediation, *multiparty mediation*, Cyprus, Greece, Turkey, United States of America (USA), United Nations (UN)

Introduction

The intensity and multiplication of intrastate conflictuality in the post-Cold War era called for a growing involvement of the international community in *peacekeeping* and *peacemaking* operations. Gradually, mediation processes were applied to managing and resolving these conflicts. They multiplied and diversified, and mediation grew to become an ever-more sophisticated and increasingly important instrument of *peacemaking*. However, the effectiveness of mediation initiatives in generating agreements in the complex and intractable intrastate conflict contexts has been low. As a consequence, in the debate on how mediation might better serve a peace process, the consensus regarding the 'key' to successful mediation outcomes pointed to exercising a combination of mediation strategies to be initiated by differently resourced mediators. *Multiparty* mediation supporters therefore realised that complex conflict situations required complex responses which necessitated the involvement of a multiplicity of mediators (Crocker *et al.*, 1999; Beardsley *et al.*, 2006; Bercovitch and Gartner, 2009).

Intrastate conflicts are particularly difficult to settle and tend to become prolonged over time (Azar, 1990, pp. 7–16). The Cyprus conflict is played out on different levels which add to the conflict's intractability and self-perpetuating dynamics. At the local level, the Cypriot conflict is characterised by power, state resources access and the demographic asymmetries between a Greek Cypriot majority

and a Turkish Cypriot minority. Ethnicity has provided the polarising and segregating dividing line and fuelled conflict escalation, ethnic cleansing and total physical separation between the two communities. At the regional level, Greece and Turkey's historically difficult relations and deep mistrust have spilled over to the local level. The 'motherlands', being stakeholders in the Cyprus dispute, have vested strategic interests on the island, legitimised by their connection to the local communities. As a result, during the first mediation initiatives enacted in Cyprus between 1963 and 1965 by the United States of America (USA) and the United Nations (UN), both disputants viewed conflict and the mediation initiatives as a zero-sum game and equally searched for, and counted on, external sympathies and allies to achieve their antithetical interests and aims (UN Secretary General, 2003, para. 143): the Greek Cypriot aspiration for union with Greece or *enosis* and the Turkish Cypriot reactive *taksim*, or partition of the island's territory between Turkey and Greece.

In 1963, the USA took the initiative to mediate the Cyprus conflict due to political and strategic interests. In the Cold War milieu, the USA feared that the conflict would not only spill over to the regional level and generate a Greek–Turkish war that might result in a weakened North Atlantic Treaty Organisation (NATO), but that American influence might also be lost to the Soviets in the southern Mediterranean. When powerful states mediate, mediation can be analysed as an extension of the state's foreign policy. In such cases, the process of a *power* mediation as opposed to a *pure* mediation, is led by these states and leverage is applied by way of benefit promises or threats of punishment to push for compromise on a settlement. The aim is to guide the parties and the mediation process in order to locate a solution in line with the interests of the powerful state (Güney, 2004, p. 28). To protect its interests and pursue its goals, the USA, being both resourceful and powerful, performed mediation in Cyprus in a directive¹ style, providing incentives and issuing ultimatums to affect the parties' conflicting issue-framing and to coerce them into agreeing to its proposed settlements.

The UN, on the other hand, became involved in the Cyprus dispute in response to the Greek Cypriot call for its involvement. Being a neutral mediator, the UN performed mainly facilitative²

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- 1 *Directive* strategies are the most intrusive and powerful form of mediation by which the mediator affects the content and substance of the mediation process. A *directive* mediator aims at changing the parties' behaviour and motivation by providing incentives or issuing ultimatums that alter the way in which they frame conflicting issues with the underlying objective of inciting the parties to cooperate. To affect the parties' perspectives on the mediation process, their expectations or their issue-framing, a *directive* mediator must possess power and resources to successfully perform certain tactics such as increasing non-agreement costs, taking responsibility for concessions, rewarding party concessions, promising resources or threatening their withdrawal, or offering to observe agreement compliance (Bercovitch and Lee, 2001).
 - 2 *Facilitative* mediation is defined as 'a set of techniques that help actors correctly identify agreements within the overlapping range of possible nonviolent outcomes', whereas the mediator serves not only as a communication channel, but also as an information provider who clarifies misconceptions the parties have over their opponent (Beardsley *et al.*, 2006, pp. 62–66).

and formulative³ style mediation through official mediation or good offices. While UN mediation is advantageous for the parties in conflict because its involvement, as dictated by the UN Charter, holds no other interest than maintaining peace and security (Richmond, 1998b, p. 26) it has less control over the mediation process, whose existence and progress relies greatly on the parties' co-operation.

In mediation literature, while *muscled* mediators, such as powerful States, are believed to be better equipped to pressure conflict disputants with highly adversarial relationships into preferring to solve their differences through negotiations rather than continuing to fight, *neutral* mediators, such as International Organisations, are viewed to be more effective in solving the parties' commitment problems and generating trust in times of de-escalation. This article aims to demonstrate that as mediators, the USA and the UN have different resources, bargaining and legitimacy capabilities in the Cyprus peace process which might have been capitalised on through a *multiparty* mediation process. To this end, an analysis is made of the Cyprus mediators, which incorporates UN and USA mediation performances since the involvement of the USA in 1963 and the end of UN official mediation led by Galo Plaza in 1965. After a theoretical contextualisation, the referred mediation initiatives are evaluated covering the following parameters: the mediator/s and its/their interests; the parties' position at the beginning of the mediation process; the mediators' proposed solutions and their views and preferences in relation to the solutions to the conflict; and, finally, the result of the mediation initiative. This analysis aims to discuss how a *multiparty* approach could have benefitted the process and outcomes of the mediation initiatives under consideration. The findings of this study offer support to the *multiparty* mediation literature and aspire to contribute to an awareness of the vital importance of coordination between the USA and UN *peacemaking* initiatives in conflict settings elsewhere.

Power, Pure and Multiparty Mediation

The debate on how, when or who should mediate and to what purpose, has been evolving continuously in mediation literature in response to the complex and intractable intrastate conflict situations in which it has been steadily practiced. When there is intervention, the mediator changes the conflict's context by introducing new information or by providing incentives or sanctions which convince the parties that mediation is a preferable alternative to continued fighting and that cooperation is possible. In principle, the greater the change needed for this game transformation to occur the more resourced a mediator must be (Terris and Maoz, 2005, p. 571). But, whether a mediator should use incentives or punishments to generate cooperation between

3 *Formulative* mediators are proposition creators and makers as well as mediation environment controllers, acting as 'coordinators' who structure the negotiations, create temporal constraints, redefine issues and create focal points and/or propose alternatives, especially when an impasse is reached at the negotiations' table (Beardsley *et al.*, 2006, pp. 62–66).

parties in a mediation process is not consensual in mediation literature. Whereas supporters of *pure* mediation consider that a mediator only assists the parties in conflict in finding an agreement (Fisher and Keashley, 1991, p. 3), supporters of *muscled* or *power* mediation stress that a mediator's capacity to influence the parties' interests can be crucial to generate the necessary compromises for a final settlement to be agreed (Bercovitch and Lee, 2001).

Historically, states have been the primary mediators since the rise of the nation-state rendered it the only legitimate actor in the international system. Until the emergence of non-state actors at the end of World War II, powerful states and coalitions guided by the *realpolitik* of interstate relations dominated the third party intervention scene (Frazier and Dixon, 2009, p. 46). Savun (2009, p. 99) argues that the states which are most likely to mediate conflict are those that possess a strong intelligence gathering apparatus, diplomatic representation in the territory of a state involved in the conflict, or alliance ties with it. What this implies is that, typically, there is a pre-existing strategic, diplomatic or historical connection between the mediation-offering state and the disputants, so that a state becomes involved in mediation when the conflict's management is relevant to its interests. Although a state's intervention as mediator is legitimised by a proclaimed conflict management objective, underlying the desire for peace, a state's motivation for becoming involved in the conflict stems from self-interest and power politics (Zartman and Touval, 1996, p. 446).

In the twentieth century, international organisations (IOs) have developed as crucial peaceful interaction framework providers between the diversified typology of actors that have emerged in the modern, globalised, international system. Because IOs are a product of a centralised cooperation among states, they are seen as legitimate information collectors that reduce uncertainty in the international system and, thus, continue to facilitate and foster cooperation among actors (Savun, 2009, pp. 100–101). For this reason, IOs have become active participants in *peacemaking* and conflict management activities, particularly the UN when freed from the bipolar constraints of the Cold War period.

Nonetheless, when the UN mediates a conflict, the disputants tend to have greater control over the process (than when mediation is performed by a state) because its coercive capacity is lower and, hence, the initiation of mediation is much more dependent on the disputants' interest in being mediated by the UN (Richmond, 1998b, p. 10). Although the UN is not dispossessed of leverage, its capacity to influence conflict parties stems, not from its military capacity and its relative power position in the international system as it does for states, but from its international status and reputation. Furthermore, international organisations mediate with the sole purpose of ending the conflict. As a result, they deposit a greater interest than states in the conflicts' solution (*ibid.*). In sum, they possess a lower capacity to leverage the parties but are more committed than states to solving the conflict. Hence, mediation by IOs, relies far more on the parties' will to maintain a cooperative behaviour, whereas a state, understood as a more resourced and powerful mediator, tends to exert additional control over the parties due to their interest in resources which the state may offer through the course of mediation (Smith, 1994, p. 447).

The question presented at the centre of the debate between supporters of *power* and *pure* mediation is whether a given actor must be impartial to perform mediation or not and whether or not the 'triangular relationship' in a mediation process is broken when a mediator uses 'carrots and sticks' to pressure the parties to cooperate or to accept a given settlement (Zartman and Touval, 1996, p. 454). Advocates of mediation as a less intrusive exercise consider that when mediators apply intrusive strategies to leverage the parties, they become partial and lose their neutrality, ceasing to be a mediator and becoming a third party to the conflict (*ibid.*). On the other hand, *power* mediation advocates argue that impartiality is unimportant to parties who wish to be mediated and, therefore it is not a necessary precondition for mediation exercises (Bercovitch and Lee, 2001). They also consider that mediators are always interested actors who feel propelled to mediate to serve an interest and follow their conflict outcome preference. Even if the interest is in generating peace, neutrality is never fully practiced or felt by mediators (Richmond, 1998a, p. 717). Put simply, to be a mediator, if impartiality or neutrality are not required of an actor, then mediation has a wider spectrum of activity and may, therefore, be both *pure* and *muscle*d.

It has been said that States have more capacity to leverage but are seen as less neutral or biased mediators, while IOs have a lower capacity to leverage but are seen as more neutral. Because of their different resource capabilities it is expected that higher involvement mediation strategies will more typically be performed by states, while IOs pursue less intrusive strategies which do not require the capacity to leverage and are not as prone to damage their neutrality. Conversely, the intrusive directive strategies performed by states are not capable of addressing the parties' more fundamental relationship-related problems and often generate short-term solutions that lead to the conflicts' re-escalation once the mediator exits the conflict's environment (Haxia, 2007, p. 593). In contrast, the less intrusive non-directive strategies performed by IOs have the capacity to reduce misconceptions and mistrust between the parties and to engender a more cooperative relationship in the long-term, despite being less effective in generating final settlements. Quinn *et al.* (2009, p. 194), find that even though facilitative and formulative mediation are less able to induce compromise between the parties as effectively as directive mediation, they are more successful in reducing tensions in the long-term and in generating commitment to what has been agreed.

In identity conflicts where discrimination, victimisation and social hatred exist, disputants are highly antagonised and unwilling to make meaningful concessions towards a demonised 'other' (Fisher, 2001, pp. 308, 321–323). Since disputants in these conflicts have highly adversarial relationships and *zero-sum* perceptions of the mediation process, their expectations regarding the mediation result becomes more sensitive, especially in the case of enduring and protracted conflicts (Crocker *et al.*, 1999, pp. 40–41; Haxia, 2007, p. 593). In the literature, the comparative analysis on the short- and long-term effects of mediation strategies to address the complexity and intractability of intrastate conflict has led to support for one effective form which allows for a capitalisation of the advantages offered by the different mediation strategies and actors. *Multiparty* mediation is defined by Crocker *et al.* (1999, p. 9), as 'attempts by many third parties to assist peace

negotiations in any given conflict', which may occur sequentially, one mediator at a time over the life of the conflict, or simultaneously, many different mediators at the same time performed by various actors such as intergovernmental organisations and national governments.

Most importantly, supporters of *multiparty* mediation affirm that for this potential for complementarity between the various existing mediation strategies to be fully realised, the coordinated and sequenced action between *pure* and *power* mediators, or states and international organisations, is crucial (Carment *et al.*, 2009, p. 233). Directive mediators can be useful interveners to *multiparty* mediation supporters when conflict tension escalates and a threat or a display of the use of force exists which render the parties unwilling to negotiate. By using leverage to prevent escalation and to pressure the parties into returning to the negotiating table, facilitative and formulative mediators can work with the parties on the improvement of their relationship and the development of trust (Frazier and Dixon, 2009, pp. 58–59). On the other hand, directive strategies are unlikely to work when the conflicts' intensity is low because they may well damage the de-escalated environment if parties find the mediator to be conducive and self-interested. Likewise, if the mediators' intentions or the fairness of an agreement is suspect, then disputants may refuse to negotiate or agree (Bercovitch and Gartner, 2009, p. 28).

Therefore, when conflict is at its lowest level of tension or at post-crisis moments, the authors support that non-state actors, such as international organisations, are the most effective in bringing the parties to the negotiation table – widening their perspectives on the conflicts' solution possibilities and helping tension de-escalation by exerting procedural control over the negotiations together with monitoring or facilitating agreement implementation.

Another advantage in the shift of mediator is that it offers the parties an alternative negotiation channel to restart talks or to increase support for what has already been agreed and, therefore, provides an extended opportunity to move a peace process forward (Crocker *et al.*, 1999, p. 9). Again, this sequencing of directive and non-directive strategies in moments of escalation and re-escalation is dependent on the assumption that in the sequencing of mediator action there is coordination in the approaches to the conflict. However, as the number of interveners increase, conflicting interests and positions may exist between the mediators themselves, and for that reason it is essential throughout the development and sustenance of a coordinated intervention strategy to capitalise on the different types of mediation styles advantages and their effectiveness (*ibid.* pp. 40–41).

USA and UN Mediation of the 1963 Cyprus Crisis

'The dire lack of a coordinated response, a sharing of resources, and a willingness to subordinate particular national or institutional goals to an overriding *peacemaking* agenda has hampered or destroyed several peace operations (...).'

Crocker *et al.*, 1999, p. 57

The sequencing of USA and UN mediation initiatives in the 1963 constitutional crisis in Cyprus, with the USA mediation being effective in de-escalating the conflict and the UN offering an alternative route to the stalemated American mediated negotiations, signalled the *multiparty* potential of these combined initiatives. It is argued that although the USA and UN mediation were carried out with the same objective of brokering an agreement between the Cypriot parties, the lack of coordination, and unwillingness to do so, caused both individual initiatives to fail since one held the comparative advantage that could have benefited the other. Sequencing allowed for the comparative advantages of both mediators to capitalise, but the USA and the UN had conflicting agendas which did not allow for coordination in approaches and for leverage opportunities to be maximised.

USA Directive Mediation

The first mediation initiatives to take place in the Cyprus conflict were led by Great Britain. After the collapse of constitutional rule in 1963 and the folding of the three-year-old Republic of Cyprus, a British-sponsored Conference was organised in London in an attempt to devise a political settlement between the communities and Greece and Turkey. Britain was eager to secure assistance or, ultimately, relief to its Truce Force troops stationed in Cyprus and put forward a proposal for the creation of a *peacekeeping* force constituted by the North Atlantic Treaty Organisation (NATO) countries and a voluntary population movement for the formation of a territorial divided Cyprus. Local Greek and Turkish administrative systems within a national political arrangement were viewed by the British Government as meeting half way the aspirations between the Greek Cypriot desire for union with Greece and the Turkish Cypriot demand for total separation. However, Greek Cypriot reluctance to accept this proposal brought an early end to the London Conference. To encourage a greater American involvement in formulating the agreement seemed to the British the next step towards acquiring a NATO-based alternative to provide relief to its Truce Force (Ker-Lindsay, 1997, pp. 83, 104–105).

Taking note that a British troops' departure from Cyprus would pave the way for a Turkish intervention, the USA became involved in the Cyprus crisis to prevent a war between Greece and Turkey that could undermine NATO's southern flank, alienate Turkey from the West and allow expansion of Soviet influence in the Mediterranean. The Americans' first mediation attempt came from President Johnson himself, inviting Greece and Turkey for talks in Washington, but the initiative failed to ease the growing intercommunal tensions on the island. Soon after, Johnson directed his Under Secretary of State, George Ball, to mediate the search for an acceptable solution for Greece and Turkey of the Cyprus problem. Development of the Anglo-American NATO Plan began, which contemplated a NATO peacekeeping force – to expand the already stationed British forces and to observe the cease-fire – and the appointment of a mediator who could seek a settlement within the NATO framework and, therefore, within American and also Turkish interests (Coufoudakis, 1974, p. 36).

In his memoirs, Ball (1982, p. 342) described the Turkish flank positions at the time as follows: 'Turkish Cypriots demanded partition and the right to govern their own community' and 'preserving Turkey's right to intervene' as a security assurance against Greek Cypriot attacks and perceived domination intentions, a demand also emphasised by the Turkish Government. Ball also mentioned that the USA considered that Turkey would never be deterred from this perceived intervention right by a UN force, which would be viewed as a vehicle of Soviet involvement. As for the Greek Cypriot leader, Makarios, Ball stated that he 'wanted union with Greece' but, 'at least for tactical purposes, was demanding a fully independent Cyprus run by the Greek majority' where the Turkish Cypriot community would be reduced to a protected minority status, while the Greek Government 'pressed for *enosis*' as well.

Through January that year, shuttling between Ankara, Athens and Nicosia, Ball was able to gain support for the NATO Plan from Turkey, whose only precondition for acceptance was that its right of intervention in Cyprus given by the Treaty of Guarantee⁴ would not be impaired. In Athens, the political scene was dim, with caretaker governments succeeding each other and probing Greece unable to sustain any position other than the one approved by Makarios (Crawford, 2003, p. 109). Makarios' acceptance then became the cornerstone for securing the NATO Plan approval. However, Makarios vehemently opposed the Plan on the grounds that it compromised Cypriot sovereignty and its non-aligned policies and put Cyprus under the orbit of Western interests (Savvides, 1998, p. 40). He further insisted that the Cyprus *problem* should only be addressed by the UN Security Council (James, 2002, p. 84). Through the UN framework, Makarios believed a Turkish intervention would be 'illegalised' and blocked (Ball, 1982, p. 345) and the Greek Cypriot sovereignty right would be recognised.⁵

Ball tried to frighten Makarios from his rigid position by suggesting that the USA and Western countries would not intervene against Turkey and he proceeded to reformulate the initial plan to exclude the necessity of Makarios' consent on the creation of a peacekeeping force. In the revised plan the peacekeeping force would be deployed not by NATO but by the three guarantor powers simultaneously, exercising their rights of intervention provided by the Treaty of Guarantee. This peacekeeping force would be set to stay in Cyprus until the UN deployed an international force. With this condition, Ball assured Turkey the protection of the Turkish Cypriot community while the UN took its time to formulate its action plan, at the same time assuring Britain of long-desired support to its troops (James, 2002, pp. 85–86).

4 In the Treaty of Guarantee, political or economic union with another country or the partitioning of the island are forbidden and the United Kingdom, Greece and Turkey are invested 'guarantor powers' of the 'independence, territorial integrity and security of the Republic' (art. 2) committing themselves to consult with each other and to take concerted action if any of the provisions of the Constitution are breached.

5 This would come into being with the Security Council's issuing of resolution 186, in which the legitimacy of the Republic of Cyprus is recognised and within it is deposited the responsibility of restoring law and order in Cyprus.

Despite Ball's scare tactics, Makarios did not move from his previous position and Britain was now displeased with Ball's alteration of the plan which frustrated the purpose of Britain's push for USA involvement, that of divesting itself of the peacekeeping efforts in Cyprus altogether (Ball, 1982, p. 347). With the British refusal of the revised NATO plan, the USA realised the 'only available course was to work through the UN' (*ibid.*, p. 348). During debate sessions at the Security Council, the USA pressed for a UN force to be quickly deployed in Cyprus to avoid a Turkish military intervention, while successfully manoeuvring to prevent Soviet participation in the force and to the rights of intervention by the Guarantors from being nullified in a resolution.⁶

Fearing that the USA was taking over the diplomatic initiative or, at least, that he would be charged by the Soviet Union of allowing it, UN Secretary General U-Thant resisted accepting the American proposal and suggested that the meeting be held on neutral ground with a neutral UN mediator. Ball insisted that American authority was necessary if there was to be any accomplishment to what U-Thant ceded by allowing Dean Acheson, the designated American negotiator, to be present at the negotiations' site in Geneva for the parties to consult with (Savvides, 1998, p. 42). Sakari Tuomioja, the UN mediator, like the USA, viewed the Cyprus dispute as international or regional in nature, as essentially a conflict of interests between Greece and Turkey, the key actors between whom the settlement could be agreed. Nonetheless, contrary to the USA, Tuomioja could not agree on *enosis* as the course for settlement, since it would mean the dissolution of a UN member-state (Ker-Lindsay, 2005, p. 8).

Although the Geneva negotiations were conducted under UN aegis, Acheson was the one who led the talks to circumvent Tuomioja in order to keep the UN and hence, Soviet influence over Cyprus, at arm's length (Nicolet, 2010, p. 105). For that reason, although Tuomioja was the 'official' mediator at Geneva, Dean Acheson's proposals were the ones being discussed at the negotiations' table. The 'Acheson Plan' proposed a 'double *enosis*' (Ball, 1982, p. 356), meaning that Cyprus would be united with Greece and divided into ten cantons; two enclaves would be under full Turkish Cypriot control and Turkey would be granted a large and strategically important military base on the island and the Kastellorizon island (Savvides, 1998, p. 42). The Plan was rejected by both sides, but although Turkey accepted it as a basis for future negotiations, when Makarios pronounced himself against it, Greece followed suit, fearful it would allow for an increased Turkish presence on Cypriot soil. To persuade the Greek government, Acheson revised the initial plan limiting the possession of the base by Turkey to a fifty-year lease and the territorial division from cantons to prefects. But now not only the Cypriot and the Greek governments but also Turkey was against it (*ibid.*, pp. 42–43).

6 Security Council resolution 186 was ambiguous regarding intervention rights even to the extent of allowing the parties to interpret it in opposite ways, with Makarios regarding it as an end to Turkish rights of intervention and Turkey as a preservation of those rights (Ball, 1982, p. 348).

Failing to consider what the Cypriot communities desired for Cyprus, the NATO and Acheson plans were a classic exercise of great power diplomacy and *realpolitik*, where American interests surpass all others and are blindly pursued and people become secondary to state interests (Brinkley, 1988, pp. 15–18; Nicolet, 2010, p. 100). The USA preferred to neglect the fact that Cyprus, although forged recently as a state, had not been under control of either Greece or Turkey for decades or centuries and that these actors were not at the centre but at the periphery of the Cyprus conflict. In the midst of the Cold War, USA mediation in Cyprus was devoted to preventing the conflict's internationalisation through UN involvement that could facilitate Soviet progression into the eastern Mediterranean (Savvides, 1998, p. 40). Even when it was no longer possible to maintain the UN at arm's length the USA continued the isolated pursuit of a settlement for the Cyprus conflict by marginalising the organisation's role in its own mediation initiative. Nonetheless, the USA was crucial to the avoidance of the conflict's further escalation into a Greco–Turkish war. However, guided by its own interests and solution preferences, the USA perceived the Cyprus conflict as a regional and international clash and failed to recognise its existence at the local level, from where in fact it had originated and from where its solution would need to emerge.

The UN Takes Over the Impasse

With the death of Tuomioja in August 1964, U-Thant appointed Galo Plaza to continue the UN mediation initiative. Instead of viewing the Cyprus conflict as an international or regional problem, Plaza approached it in intrastate and communal terms (Ker-Lindsay, 2005, p. 9). When the lead of the Cyprus mediation initiative was taken over by the UN the mediation target shifted from the 'motherlands' to the communities – from searching for a solution to the problem in its international and regional dimensions to its local one. In this new approach, Turkey's interest automatically became less relevant and less privileged in the proposed solution. It is argued below that this shift in the mediation approach ultimately led to Turkey's non-acceptance of Plaza's proposals and the termination of UN official mediation in Cyprus altogether.

The UN was motivated to mediate in the Cyprus conflict purely for humanitarian, conflict management and peace re-establishment concerns, though, Security Council Resolution 186 did recognise the legitimacy of the Republic of Cyprus and deposited in it the responsibility of restoring law and order. Notwithstanding, this was not a product of a lack of neutrality in UN intervention in the Cyprus conflict but a reflection of the organisation's perception as to how its preferred outcome could better be achieved, which at that stage centred on avoiding Turkey's military involvement (Reddaway, 1986, p. 552).

From 16 September 1964 to 26 March 1965, Plaza established headquarters in Nicosia and visited the capitals of Greece, Turkey and the United Kingdom, performing three series of consultations. The positions of the parties remained distant through the consultation phase and each demanded unattainable preconditions to be met before entering into direct talks (para. 120),

which Plaza considered to be vital for the success of the mediation efforts.⁷ Since it was not possible for the parties to reach agreement among themselves and for direct negotiations to take place under the ongoing conditions, the mediation reached an impasse. Putting forward his own proposal for agreement was, to Plaza, the next essential step in an attempt to find common ground that would 'allow the parties to go as close as the circumstances permit to their legitimate objectives' (para. 121) and the 'directions along which they should reasonably be expected to meet and try to seek an agreement' (para. 124).

Contrary to previous USA approaches, Plaza opposed the idea of dividing the island in any form, whether it was *enosis* or partition, or even the creation of a federal state. Instead, Plaza stressed the political unity of Cyprus as the basis for solution, one that should not deny the political majority their right to rule but should be able to avoid dominance of one community over the other and not jeopardise or delay indefinitely the unity of the population (para. 163). For Plaza, a sustained long-term solution for Cyprus should be found within the framework of a unitary and sovereign state capable of preventing supremacy of one community over the other while promoting the communities' integration. All parties involved should refrain from attempting to restore the 1960 Constitution, which he believed to be 'psychologically and politically impossible' (para. 129) and pursue the creation of a new independent sovereign state of majority rule where Turkish Cypriot minority rights would be protected (Coufoudakis, 1974, p. 36). For this new independence to be established – one that differed from the Greek Cypriot demand of 'unfettered independence' with the demand for self-determination – suspicion and fear would have to be countered by Greek Cypriot abandonment of the political goals of *enosis* and reciprocated by Turkish Cypriot abandonment of the pursuit of *taksim* (para. 137). In this sense, the right of self-determination would be exercised not by the communities individually but by the state, who would be in the best position to decide what was best for the well-being of its citizens as a whole and for international peace and security (para. 143). The protection of the Turkish Cypriot community would not be assured by a geographical divide and the transfer of people, but through the establishment of transitional yet 'most rigorous possible guarantees' (para. 160) of individual and minority rights 'without weakening the unity of the state' (para. 163). Cyprus would be demilitarised and the Treaties of Guarantee and Alliance abrogated (para. 147), but Plaza foresaw the UN acting as the new Guarantor of Cyprus' independence to meet Turkey's security concerns (para. 168).

The Plaza Report was eventually accepted as a basis for future negotiations by the Greek Cypriots but rejected by Turkey and Turkish Cypriots who were not willing to agree on a proposal

7 Plaza regarded the consultations phase as an important first step leading to direct multilateral talks. Plaza stated that direct talks should be held 'at the earliest possible moment' in a mediation process, however, he also found these could not be hastened, otherwise, the absence of a 'minimum common understanding' between the parties might risk 'a further deepening of the impasse' (1965, para. 89).

that would nullify the Turkish right of intervention in Cyprus. During the consultation period Turkey had expressed that it was beyond the remit of an intermediary to issue proposals on a solution. Moreover, Turkey argued that Plaza's proposals bore the moral stamp and force of the UN as they were put forward by a UN mediator, therefore constituting an arbitrator's and not a mediator's task (Plaza, 1965, p. 44). Turkey argued that in making his agreement proposals Plaza went beyond the limits of his mandate, rejected the report and called for Plaza's resignation. The Greek Cypriots responded to the Turkish stand by refusing to accept a replacement in the event of Plaza's resignation. Faced with these reactions, U-Thant decided to make his good offices available to the parties. Plaza resigned soon after but was never replaced, and the UN official mediation was abandoned altogether (Ker-Lindsay, 2005, p. 9).

Despite its repercussions, Turkey's argument that Plaza's report bore the moral stamp of the UN and his report-issuing was arbitral is not a valid argument. The Plaza report provided for a basis for settlement proposal negotiations and not a definite solution to be implemented as it stood. Also, in an arbitration process the parties accept its binding character before any settlement plan is presented to them. By putting forward a settlement proposal, Plaza was merely performing formulative mediation and not one of an arbitral nature. The Plaza mediation was refused not because Turkey was irrevocably bound to accept the Plaza report as the definite settlement, but because Plaza's and the UN's outcome preference was less aimed at satisfying Turkish interests than the previous American proposals. The shift from the USA's *top-down* to UN's *down-top* solution perspectives, which themselves were a product of these actors' deferring views and interest upon the Cyprus conflict, can better shed light on the causes for the breakdown of the first and only UN official mediation in Cyprus. This event reduced the Organisation's mediatory capacity for years to come, finding itself limited to performing the least intrusive mediation strategies in order to remain an acceptable intermediary to all parties under the 'Good Offices' framework.

The Missed *Multiparty* Mediation Opportunity

'Like cats, these independent agents rarely feel an obligation, or even a desire, to cooperate and they retain the ability to walk away from the mediation or to launch competing initiatives.'

Croker *et al.*, 1999, p. 4

The mediation initiatives led by the USA and the UN after the 1963 constitutional breakdown in Cyprus had an ideal *multiparty* potential that was not recognised. Indeed it was refused by both mediators. Realisation or a willingness to recognise this potential could have provided the opportunity to avoid Plaza's full-blown failure of UN official mediation, which has limited the UN's mediation capacity in the Cyprus conflict in subsequent years and, in the course of the *peace process* in Cyprus. In mediating the Cyprus crisis, although the UN has enjoyed legitimacy power, it reaps weak reward and coercive power capabilities and, hence, a lower control of the mediation

process. On the other hand, while the USA has realised strong reward and coercive power and, therefore, control over the mediation process, once it initiates mediation due to vested interests in the conflict's context, it is viewed as *biased* by conflict parties and has lower legitimacy power. Notwithstanding, the USA and the UN had the ingredients for success set forth by *multiparty* mediation supporters. Their interventions have been sequenced accordingly – of a powerful mediator during periods of conflict escalation and of a *pure* mediator in the subsequent period of lower conflict intensity.

The USA has been successful in de-escalating the Cyprus conflict and in pressuring the parties into negotiating, nonetheless, in performing directive mediation, the USA impacted on the conflict's substance. The use of directive strategies altered the parties' balance of power and their expectations regarding the mediation outcome. The American mediation particularly affected Turkey's perspectives and expectations over the mediation process to the extent that the shift to UN mediation was perceived as a positional loss. Once the USA mediation had put Greece and Turkey at the centre of the Cyprus dispute, Turkey reacted to the (perceived) 'downgrading' conferred by Plaza, of its status from a main to a third party to the conflict.

Once Plaza approached the Cyprus conflict at its epicentre, targeting its local level and viewing it in intercommunal terms (Ker-Lindsay, 2003, p. 9), the Plaza proposal offered a solution which was routed in an entirely different direction to that suggested by the NATO and Acheson proposals. The proposal did not fully satisfy any of the parties' interests. It prevented Greece and Greek Cypriots from achieving *enosis* and Turkish Cypriots and Turkey from partitioning the island, although Turkish Cypriots would be protected from Greek Cypriot domination in the new state. Turkey, however, would lose its only asset over Cyprus – its right of intervention – and be de-linked from Cyprus' future with no compensation. As a result, the move to UN mediation meant a greater change for Turkey, with a shift from being the actor whose interests would mostly have been satisfied in US mediation, to an actor whose interests were secondary to the Cyprus solution in UN mediation.

Pushing the UN away from the solution-finding process in Cyprus thus became vital for Turkey and consequently the motive for accusing Plaza of arbitration. By using the arbitration accusation Turkey successfully transformed the mediation process into the issue in conflict that led to Plaza's mediation deadlock. This is an indicator of how little control the UN had over the mediation process; not being adept at curbing the Turkish argument or in exerting influence over the parties to prevent them from forsaking the mediation process. The Organisation was forced to abandon official mediation and adopt the provision of good offices and watch as its mediatory capacity diminished to a minimal facilitative mediator, until Waldheim assumed the good offices provision in 1972.

Advocates of *pure* and *muscled* mediation are equally correct in their reasons for judging both types of mediation performance as important. Contrarily, they fail to see that they are complementary, that directive mediation's positive impact on the probability of success of a mediation process can and

should be used to complement *pure* mediation's capacity to alter the parties' relationship; to generate trust through the use of reasoning and persuasion and the conception of alternatives to their antagonistic aims. Conversely, like *power* mediation supporters, the USA did not even consider the need for one that might address and improve the parties' adversarial relationships in order for them to remain open to making concessions towards the other side. The use of a facilitative mediation for this purpose was performed in UN mediation by Plaza. However, as a *pure* mediator, the organisation lacked control over the mediation process as well as the resources and power to pressure the parties into staying at the negotiation table. Similar to *power* and *pure* mediation supporters, the USA and the UN neither perceived nor capitalised on the complementarity between the directive USA mediation and UN facilitative mediation, which was impaired by the USA's pursuit of an agreement along lines relevant to its own interests. Had this complementarity potential been capitalised on, the USA may have constrained the parties against evading the UN's mediation process and the conflict's subsequent re-escalation might have been avoided.

In addition, the *multiparty* mediation potential could have been capitalised on the different conflict levels in which these mediators operated. On the one hand, the USA mediation failed to account for the dynamics of the conflict at the local level and did not consider the local communities' interests in the agreement proposed. Then again, the UN mediation also failed to take into account the influence of conflict dynamics at regional level on the local scene and overlooked the impact of the 'motherlands' interests on local communities. As mentioned above, while USA mediation could have benefited from Plaza's *down-top* solution perspectives and the need to target and accommodate Greek Cypriot and Turkish Cypriot antagonisms, so too could the USA have played an important role in coercing Turkey to remain at the negotiation table, perhaps preventing the complete abandonment of UN official mediation.

When a universally accepted definition of a conflict is not upheld by intervening international conflict managers, then attempts to craft a lasting solution are compromised (Masunungure and Badza, 2010, p. 229). As a result, in the first mediation attempts of the Cyprus conflict, the two mediators intervened uncooperatively and in isolation from one another. Complementarity between the directive USA mediation and UN facilitative and formulative mediation was not capitalised on either by the mediators, and was mainly impaired by the USA's pursuit of an agreement along the lines of self-interest. Had the *multiparty* potential of the USA and UN mediation initiatives after the 1963 crisis in Cyprus been successfully exploited, it is conceivable that Plaza's mediation failure could have been avoided by the USA applying pressure on Turkey to accept the Plaza proposal as a basis for future negotiations.

The above statement by Croker *et al.* refers to the involvement of third parties in a given conflict, and not particularly to mediators. Regardless, it strikingly describes the behaviours of the USA and UN mediators in between 1963–1965. During their mediation initiatives, the USA and UN disorganised 'cats' failed to recognise and take advantage of the full conflict management and resolution potential of their mutual involvement. Coordination between the USA and UN

mediation does demonstrate a potential for success, with the USA being capable of exerting pressure to prevent third parties from spoiling progress in the mediation procedure at the local level and the UN being better equipped to work through the parties' commitment problems and lack of trust. Capitalising on these opportunities may well be beneficial to the ongoing mediation process in Cyprus and in other UN-mediated conflicts where the USA may hold strategic interests.

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